

Court No. - 32

Case :- WRIT - C No. - 26575 of 2018

Petitioner :- Promod Sharma

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Awadhesh Prasad

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

This writ petition, inter alia, has been filed for the following reliefs;

"i. To issue a writ of certiorari calling for the original records of the present case from the respondents.

ii. To issue a writ of certiorari for quashing the Final Assessment dated 19.06.2018 (Annexure No. 9).

iii. To issue a writ of mandamus directing the respondents to pass the final order and to decide the case of the petitioner finally after considering the contents of the application/objection dated 23.12.2017 is pending before the respondents filed by the petitioner and till then the respondents be restrained to recover/realize any amount of money, in view of the final assessment dated 19.06.2018 (Annexure No. 9).

iv. To issue a writ of mandamus to restrain the respondents not to disconnect the electricity connection No. 1410130013 of the petitioner and not to initiate any coercive measures against the petitioner during the pendency of the present petition before the Hon'ble court and or may be pleased to pass any other suitable order under the facts and circumstances of the case."

A perusal of the record shows that earlier also the petitioner had approached this Court by means of a Writ Petition No. 4126 of 2018 and this Court by order dated 31.1.2018, inter alia, passed the following order;

"In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8 (b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned demand/recovery notice dated 05.12.2017 (annexure no. 2 to the writ petition) is hereby quashed. The respondent no. 2 is directed to prepare a fresh provisional assessment order and serve the same upon the petitioner. The final assessment order shall be made after considering petitioner's objection, giving reasons to meet the objection of petitioner."

It appears that after the passing of the aforesaid order by this Court, fresh provisional assessment order was passed and notices were issued to the petitioner to file his objections but it appears that the petitioner did not file any fresh objection. Consequently, the final assessment order dated 19.6.2018 was passed assessing the amount of Rs. 1,86,147/- to be paid by the petitioner.

Learned counsel for the petitioner stated that the objection of the petitioner was already on record which was filed against the provisional assessment order dated 27.11.2017 but the same has not been considered while passing the final assessment order dated 19.6.2018.

A perusal of the final assessment order dated 19.6.218 shows that the grounds taken in the objection of the petitioner has not at all been considered and the final assessment order has been passed mechanically and in a casual manner. The petitioner has also tried to draw the attention of the Court towards Clause 6.8 (c) (i) of the Uttar Pradesh Electricity Supply Code, 2005 which reads as follows;

"(i) On the date of hearing, the Assessing Officer shall hear the consumer. The Assessing Officer shall give due consideration to the facts submitted by the consumer and pass, within [15] working days, a speaking order as to whether the case of UUE is established or not. The order shall contain the brief of inspection report, submissions made by the consumer in his written reply and during hearing"

A perusal of the record shows that the final assessment order passed in the present case is absolutely a non-speaking order and does not show that any mind has been applied. Apart from it, it does not show that the objections raised by the petitioner have been considered while passing the final assessment order.

In view of the above, the writ petition is allowed and the final assessment order dated 19.06.218 issued by the Executive Engineer, Respondent No. 2 is hereby quashed. The petitioner is directed to appear before the Respondent No. 2, Executive

Engineer on 27.8.2018 at 11 A.M. along with a certified copy of this order enclosing therewith a copy of the writ petition and its entire Annexures as well as his fresh objection and adduce any evidence, if any, in support of his contention. The Respondent No. 2, thereafter, shall pass the final order within 15 days by a speaking order after considering the objections of the petitioner as well as the contention raised by the petitioner.

Needless to mention here that in case if any final order is passed, it is always open to the petitioner to file an appeal under Section 127 of the Electricity Act, 2003 in accordance with law before the concerned authority.

Order Date :- 7.8.2018

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